

What to do with your Durable Power of Attorney for Financial Affairs

Carefully read through your document below. Make sure that you ***initial and sign*** your document in the appropriate places.

Who should get a copy of my Durable Power of Attorney for Financial Affairs?

Tell the following persons that you have completed a Durable Power of Attorney for Financial Affairs and give each a copy:

- The person(s) you have named to make health care decisions for you (attorney-in-fact),
- Anyone who will make the existence of your Durable Power of Attorney for Financial Affairs known if you cannot do so yourself, such as a family member, close friend or lawyer,
- You may wish to give a copy to your financial institutions or other account holders.

Can I revoke my Durable Power of Attorney for Financial affairs if I change my mind?

You can revoke your Durable Power of Attorney for Financial Affairs at any time. The best way is to make a written statement revoking the document and give it to everyone who has a copy of your Durable Power of Attorney for Financial Affairs. If you sign a new Durable Power of Attorney for Financial Affairs, it will revoke any prior one you signed.

Destroy all copies of a revoked Durable Power of Attorney for Financial Affairs.

IDAHO DURABLE POWER OF ATTORNEY FOR FINANCIAL AFFAIRS

IMPORTANT INFORMATION

This power of attorney authorizes another person (your agent) to make decisions concerning your property for you (the principal). Your agent can make decisions and act with respect to your property (including your money) whether or not you are able to act for yourself. The meaning of authority over subjects listed on this form is explained in the Uniform Power of Attorney Act, chapter 12, title 15, Idaho Code. This power of attorney does not authorize the agent to make health care decisions for you. You should select someone you trust to serve as your agent. The agent's authority will continue until your death unless you revoke the power of attorney or the agent resigns. Your agent is entitled to reasonable compensation unless you state otherwise in the Special Instructions. This form provides for designation of one (1) agent. If you wish to name more than one (1) agent, you may name a coagent in the Special Instructions. Coagents are not required to act together unless you include that requirement in the Special Instructions. If your agent is unable or unwilling to act for you, your power of attorney will end unless you have named a successor agent. You may also name a second successor agent.

If you have questions about the power of attorney or the authority you are granting to your agent, you should seek legal advice before signing this form.

DESIGNATION OF AGENT

I, _____ (full name of person signing this document), name the following person as my agent: _____ (name of person giving authority to), who resides at _____ (street address), in the City of _____, State of _____, with the phone number of _____.

If my agent is unable or unwilling to act for me, I name _____ as my successor agent, who resides at _____ (street address), in the City of _____, State of _____, with the phone number of _____.

GRANT OF GENERAL AUTHORITY

I grant my agent and any successor agent general authority to act for me with respect to the following subjects as defined in the Uniform Power of Attorney Act, chapter 12, title 15, Idaho Code:

(INITIAL each subject you want to include in the agent's general authority. If you wish to grant general authority over all of the subjects you may initial "All Preceding Subjects" instead of initialing each subject.)

- _____ Real Property
- _____ Tangible Personal Property
- _____ Stocks and Bonds

- _____ Commodities and Options
- _____ Banks and Other Financial Institutions
- _____ Operation of an Entity or Business
- _____ Insurance and Annuities
- _____ Estates, Trusts, and Other Beneficial Interests
- _____ Claims and Litigation
- _____ Personal and Family Maintenance
- _____ Benefits from Governmental Programs or Civil or Military Service
- _____ Retirement Plans
- _____ Taxes
- _____ All Preceding Subjects

GRANT OF SPECIFIC AUTHORITY (OPTIONAL)

My agent MAY NOT do any of the following specific acts for me UNLESS I have INITIALED the specific authority listed below:

(CAUTION: Granting any of the following will give your agent the authority to take actions that could significantly reduce your property or change how your property is distributed at your death. INITIAL ONLY the specific authority you WANT to give your agent.)

- _____ Create, amend, revoke, or terminate an inter vivos trust
- _____ Make a gift, subject to the limitations of the Uniform Power of Attorney Act, chapter 12, title 15, Idaho Code, and any special instructions in this power of attorney
- _____ Make a gift without limitations except any special instructions in this power of attorney
- _____ Create or change rights of survivorship
- _____ Create or change a beneficiary designation
- _____ Authorize another person to exercise the authority granted under this power of attorney
- _____ Waive the principal's right to be a beneficiary of a joint and survivor annuity, including a survivor benefit under a retirement plan
- _____ Exercise fiduciary powers that the principal has authority to delegate

LIMITATION ON AGENT'S AUTHORITY

An agent that is not my ancestor, spouse, or descendant MAY NOT use my property to benefit the agent or a person to whom the agent owes an obligation of support unless I have included that authority in the Special Instructions.

SPECIAL INSTRUCTIONS (OPTIONAL)

On the following lines you may give special instructions:

EFFECTIVE DATE

- ☐ **Durable:** This power of attorney is effective immediately and shall only terminate upon my death or revocation.
- ☐ **Durable with Expiration Date:** This power of attorney is effective immediately and shall terminate upon my death, revocation, or automatically on the ____ day of _____, 20____.
- ☐ **Springing Durable:** This power of attorney will become effective if a physician or licensed psychologist determine in a writing or other record that the principal is incapacitated within the meaning of section 15-12-102(5)(a), Idaho Code. If the principal is unavailable (for example they are detained or unable to return to the United States) a licensed attorney at law, judge or appropriate governmental official may make a determination that the principal is incapacitated within the meaning of section 15-12-102(5)(b), Idaho Code.

A person authorized by the principal in this power of attorney to determine that the principal is incapacitated may act as the principal's representative as defined in, and pursuant to, the health insurance portability and accountability act, section 1171 through 1179 of the social security act, 42 U.S.C. section 1320d through 1320-d-8, as amended, and applicable regulations, to obtain access to the principal's health care information and communicate with the principal's health care provider. This authority does not enable the agent to make health-care decisions for the principal.

NOMINATION OF CONSERVATOR (OPTIONAL)

If it becomes necessary for a court to appoint a conservator of my estate, I nominate the following person(s) for appointment:

Name of Nominee for conservator of my estate: _____

Nominee's Address: _____

Nominee's Phone Number: _____

RELIANCE ON THIS POWER OF ATTORNEY

Any person, including my agent, may rely upon the validity of this power of attorney or a copy of it unless that person knows it is terminated or invalid.

Your Signature: _____ **Date:** _____

Your Name Printed: _____

Your Address: _____

Your Phone Number: _____

[illegible]

IN WITNESS WHEREOF, I have set my hand and seal the day and year as above written.

Commission Expires: _____

AGENT'S DUTIES

(1) Do what you know the principal reasonably expects you to do with the principal's property or, if you do not know the principal's expectations, act in the principal's best interest;

- (2) Act in good faith;
- (3) Do nothing beyond the authority granted in this power of attorney;
- and
- (4) Disclose your identity as an agent whenever you act for the principal by furnishing the name of the principal and signing your own name as "agent" in the following manner:
_____ (Principal's Name) by _____ (Your Signature) as "agent"

Unless the Special Instructions in this power of attorney state otherwise, you must also:

- (1) Act loyally for the principal's benefit;
- (2) Avoid conflicts that would impair your ability to act in the principal's best interest;
- (3) Act with care, competence and diligence;
- (4) Keep a record of all receipts, disbursements, and transactions conducted for the principal;
- (5) Cooperate with any person that has authority to make health care decisions for the principal to do what you know the principal reasonably expects or, if you do not know the principal's expectations, to act in the principal's best interest; and
- (6) Attempt to preserve the principal's estate plan if you know the plan and preserving the plan is consistent with the principal's best interest.

TERMINATION OF AGENT'S AUTHORITY

You must stop acting on behalf of the principal if you learn of any event that terminates this power of attorney or your authority under this power of attorney. Events that terminate a power of attorney or your authority to act under a power of attorney include:

- (1) Death of the principal;
- (2) The principal's revocation of the power of attorney or your authority;
- (3) The occurrence of a termination event stated in the power of attorney;
- (4) The purpose of the power of attorney is fully accomplished; or
- (5) A legal action is filed with a court to end your marriage to the principal, or for your legal separation, unless the Special Instructions in this power of attorney state that such an action will not terminate your authority.

LIABILITY OF AGENT

The meaning of the authority granted to you is defined in the act. If you violate the act or act outside the authority granted, you may be liable for any damages caused by your violation.

IF THERE IS ANYTHING ABOUT THIS DOCUMENT OR YOUR DUTIES THAT YOU DO NOT UNDERSTAND, YOU SHOULD SEEK LEGAL ADVICE.